

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #06	CCRB Case #: 201610598	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/29/2016 6:10 PM	Location of Incident: Corner of § 87(2)(b)	18 Mo. SOL 6/29/2018	Precinct: 50		
Date/Time CV Reported Fri, 12/30/2016 8:52 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 12/30/2016 8:52 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Mayko Matos	13660	957821	050 PCT
2. POM John Labianca	14211	945892	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Sheila Samora	25562	952492	050 PCT
2. POM Richard Planamenta	820	957042	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mayko Matos	Discourtesy: Police Officer Mayko Matos spoke discourteously to § 87(2)(b)	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 30, 2016, § 87(2)(b) filed this complaint with the CCRB via the online web form.

On December 29, 2016, at approximately 6:10 P.M., § 87(2)(b) was smoking a marijuana cigarette in a stairwell in the vicinity of § 87(2)(b) in the Bronx. PO Richard Planamenta and PO Mayko Matos of the 50th Precinct entered the stairwell and saw § 87(2)(b). § 87(2)(b) immediately discarded the cigarette and ran out of the stairwell. § 87(2)(b) ran north on § 87(2)(b). § 87(2)(b) was subsequently stopped at the corner of § 87(2)(b) by PO John Labianca and PO Sheila Samora of the 50th Precinct. As § 87(2)(b) was being handcuffed, PO Matos yelled, “Suck my dick” and, “You’re a pussy” (**Allegation A**). § 87(2)(b) was arrested and transported to the 50th Precinct Stationhouse where he was released with a Desk Appearance Ticket [BR 01, 02]. § 87(4-b), § 87(2)(g)

There is no video footage for this incident.

Mediation, Civil and Criminal Histories

- On January 27, 2017, § 87(2)(b) rejected mediation § 87(2)(b).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of February 22, 2017, § 87(2)(b) has not filed a Notice of Claim in regards to this incident.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 03].
- PO Matos has been a member of the service for two years and has nine other CCRB allegations made against him, eight of which are awaiting board review.
- PO Labianca has been a member of the service for nine years and has seven other CCRB allegations made against him, four of which are awaiting board review.

Potential Issues

- Video footage of this incident existed at the Riverdale Chrysler Jeep Dodge and Ram Dealership located at 5869 Broadway in the Bronx. However, the footage was deleted before a statement could be obtained from § 87(2)(b) to provide the incident location.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Discourtesy: Police Officer Mayko Matos spoke discourteously to § 87(2)(b)

According to § 87(2)(b)'s testimony, as he was being handcuffed, PO Matos stepped within six inches of his face and yelled, "Suck my dick" and "You're a pussy" [BR 05]. PO Matos was enraged and his voice was raised. The remaining officers were standing within a few feet of § 87(2)(b) at the time of PO Matos' comments.

In his interview with the CCRB, PO Matos stated that the only interaction he recalled having with § 87(2)(b) on scene was when he told him he could have gotten hit by a car while running from the officers [BR 06]. PO Matos denied stating, "Suck my dick" and "You're a pussy." Furthermore, PO Matos did not use the words "dick" or "pussy" in any context while on scene. PO Matos did use any profanity or raise his voice on scene.

PO Samora testified that she did not observe PO Matos step within six inches of § 87(2)(b)'s face and did not hear PO Matos say, "Suck my dick" or "You're a pussy" [BR 07]. PO Samora did not hear PO Matos use the words "dick" or "pussy" in any context on scene. PO Samora did not hear PO Matos use any profanity on scene. PO Matos did not raise his voice at any point during the interaction.

PO Labianca stated that the only time PO Matos was within six inches of § 87(2)(b) was when he placed him in handcuffs [BR 08]. PO Matos did not say anything to § 87(2)(b) as he was being handcuffed. PO Labianca did not hear PO Matos say, "Suck my dick" or "You're a pussy." PO Labianca did not hear PO Matos use the words "dick" or "pussy" in any context on scene. PO Labianca did not hear PO Matos use any profanity on scene. PO Matos did not raise his voice at any point during the interaction.

PO Planamenta testified that he did not hear PO Matos say, "Suck my dick" or "You're a pussy" on scene [BR 09]. PO Planamenta did not hear PO Matos use the words "dick" or "pussy" in any context on scene. PO Planamenta did not hear PO Matos use any profanity while on scene. PO Planamenta did not remember PO Matos' voice being raised at any point on scene.

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted].

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 6

Investigator:	_____	__Hannah Sampson__	_____
	Signature	Print	Date
Squad Leader:	_____	__Jessica Peña__	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date